

25LBCV03415 25LBCV03415

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-09-15

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Case Number: 25LBCV03415 Hearing Date: September 15, 2026 Dept: S28

BACKGROUND

On December 16, 2025, Plaintiff Devon

Randall ("Plaintiff") filed a complaint against Defendant Carnival Corporation d/b/a Carnival Cruise Line ("Defendant") alleging negligence, premises liability, products liability (foreign object in food), and breach of implied warranty of merchantability.

On May 5, 2026, Defendant filed the instant Motion to Dismiss for Forum Non Conveniens.

On June 23, 2026, Plaintiff filed opposition which was accompanied by the declarations of Pamela Walker and Plaintiff Devon Randall, and a "Summary of Opposition" that was mislabeled as evidentiary objections.

On June 30, 2026, Defendant filed a reply.

On July 2, 2026, Plaintiff filed "final declarations" of Pamela Walker and Devon Randall, and a declaration of paralegal Ron Rodis who is employed by Plaintiff's firm. On July 14, 2026, Plaintiff filed a notice of errata stating that the June 23, 2026 declarations of Pamela Walker and Devon Randall inadvertently did not constitute the "final" versions of the declarations.

DISCUSSION

Applicable

Law

Code of Civil

Procedure section 410.30, subd. (a) provides: “When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.”

“In

determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a ‘suitable’ place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California.” (Stangvik v. Shiley Incorporated (1991) 54 Cal.3d 744, 751.)

“An

alternative forum is suitable if it has jurisdiction and the action in that forum will not be barred by the statute of limitations. It bears emphasis that ‘[i]t is sufficient that the action can be brought, although not necessarily won, in the suitable alternative forum.’ That the law is less favorable to the plaintiffs in the alternative forum, or that recovery would be more difficult if not impossible, is irrelevant to the determination whether the forum is suitable unless ‘the alternative forum provides no remedy at all.’” (Guimei v. General Electric Co. (2009) 172 Cal.App.4th 689, 696 (Citations Omitted).) The ‘no remedy at all’ exception applies ‘only in “rare circumstances,” such as where the alternative forum is a foreign country whose courts are ruled by a dictatorship, so that there is no independent judiciary or due process of law.’ [Citation.]” (Id. at 696–697.)

“The private

interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has

little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation.” (Guimei, *supra*, 172 Cal.App.4th at 701 (Citations Omitted).)

“On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court's discretion, and substantial deference is accorded its determination in this regard.” (Stangvik, *supra* 54 Cal.3d at 751.)

A “passage contract on a cruise ship is a maritime contract, and its interpretation is governed exclusively by maritime or admiralty law. The validity of a passage contract provision is to be interpreted by the general maritime law of the United States, not state law.” (Korman v. Princess Cruise Lines, Ltd. (2019) 32 Cal.App.5th 206, 215[quoting Hayman v. Sitmar Cruises, Inc. (1993) 14 Cal.App.4th 1499, 1504].) The California Court of Appeals has stated that “enforceability of a forum selection clause in a passenger cruise contract is a case in admiralty, and federal law governs the enforceability of the forum-selection clause.” (Schlessinger v. Holland America (2004) 120 Cal.App.4th 552, 557 [quotation marks and citation omitted].)

When analyzing whether a limitation in a guest ticket contract is valid and enforceable under general maritime law, courts have looked to see if the provision was reasonably communicated to the passenger. (See Nash v. Kloster Cruise A/S, 901 F.2d 1565, 1566-67 (11th Cir. 1990); Kornberg v. Carnival Cruise Lines, 741 F.2d 1332, 1335 (11th Cir. 1985.)) “The appropriate inquiry is whether a cruise ship operator reasonably communicates to passengers the existence within the ticket of important terms and conditions which affect legal rights, not whether the passenger actually received and read the ticket contract.” (Royal Caribbean Cruises, Ltd. v. Clarke, 2014 Fla. App. LEXIS 15655 *2-3 (Fla. 3d DCA Oct. 8, 2014.) Additionally, whether notice of a provision in a guest ticket contract was reasonably communicated is a question of law to be determined by the Court. (See Nash v. Kloster Cruise A/S, 901 F.2d 1565, 1566-67 (11th Cir. 1990) citing Shankles v. Costa Armatori, S.P.A., 722 F.2d 861, 867 (1st Cir. 1983.)

In determining whether a cruise ticket provision is reasonably communicated and

enforceable, courts employ a two-part test, analyzing (1) adequacy of "warning language" directing passengers to read certain terms; and (2) the terms themselves, including the size of the typeface and the simplicity of the language used. (See, e.g., *Hodes v. S.N.C. Achille Lauro ed Altri-Gestione*, 858 F.2d 905, 910 (3d Cir. 1988), quoting *Marek v. Marpan Two, Inc.*, 817 F.2d 245, 246 (3d Cir. 1987); see also *Hicks v. Carnival Cruise Lines, Inc.*, No. CIV. A. 93-5427, 1994 WL 388678, at *1 (E.D. Pa. July 26, 1994) (whether a contractual provision was reasonably communicated to a passenger, "involves an examination of the warning language on the ticket that directs the passenger to read the terms contained in the ticket and the physical characteristics of the terms themselves, to ascertain whether the ticket suffices to give the Plaintiff sufficient notice of the conditions it contains...Whether the terms were reasonably communicated to the Plaintiff is a question of law.")

Preliminary

Matters

1.

Evidentiary

Objections

The

Court rules on Plaintiff's Objections to the Declaration of Noelle Henry, as follows:

Objections

Nos. 1-6: SUSTAINED, lacks foundation/assumes facts not in evidence as to Plaintiff's personal actions in connection with the purported Contract between the parties.

Objections

No. 7: SUSTAINED, improper legal argument in declaration.

Objections

Nos. 8-12: OVERRULED.

2.

Defendant's

"Demurrer"

In the alternative to granting the instant Motion, Defendant asks the Court to “sustain its demurrer and dismiss the Complaint because Plaintiff’s claims are barred by the contractual one-year limitations period contained in the Cruise Ticket Contract.” Defendant may not combine a demurrer with the instant Motion. The Court will not rule on any demurrer that is not properly before the Court as a separately noticed Motion.

3. Plaintiff’s Unauthorized Sur Filings

On June 23, 2026, Plaintiff filed opposition which was accompanied by the declarations of Pamela Walker and Plaintiff Devon Randall, and an unauthorized “Summary of Opposition” that was mislabeled as evidentiary objections. There is no basis for the Court to consider the “Summary of Opposition” in addition to the memorandum of points and authorities.

On July 2, 2026, after Defendant filed a reply, Plaintiff filed “final declarations” of Pamela Walker and Devon Randall, and a declaration of paralegal Ron Rodis who is employed by Plaintiff’s firm. On July 14, 2026, Plaintiff filed a notice of errata stating that the June 23, 2026 declarations of Pamela Walker and Devon Randall inadvertently did not constitute the “final” versions of the declarations. Mr. Rodis declares that the error is clear from the June 23, 2026 declarations. However, there is no basis for the Court to consider these late filed declarations as the June 23, 2026 declarations appear complete and proper on their face.

Analysis

Defendant moves to dismiss the Complaint, or in the alternative, stay the action, on the grounds of forum non conveniens pursuant to California Code of Civil Procedure (“CCP”) § 410.30(a).

4.

Forum

Selection Clause

“The

procedure for enforcing a forum selection clause is a motion to stay or dismiss for forum non conveniens.” (Olinick v. BMG Entertainment (2006) 138

Cal.App.4th 1286, 1294; Code Civ. Proc., § 410.30.) Forum non conveniens is an equitable doctrine, codified in Code of Civil Procedure section 410.30, under which a trial court has discretion to stay or dismiss a transitory cause of action that it believes may be more appropriately and justly tried elsewhere. [Citation.] The inquiry is whether ‘in the interest of substantial justice an action should be heard in a forum outside this state.’ [Citation.]” (Animal Film, LLC v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 471.)

“In a contract dispute in which the parties’ agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive.” (Animal Film, LLC, supra, 193 Cal.App.4th at p. 471.) Where a forum selection clause is “mandatory” and thus, “mandate[s] litigation exclusively in a particular forum”, “the modern trend is to enforce mandatory forum selection clauses unless they are unfair or unreasonable.” (Berg v. MTC Electronics Technologies (1998) 61 Cal.App.4th 349, 358-359.) In other words, “[a] court will usually honor a mandatory forum selection clause without extensive analysis of factors relating to convenience”—rather, “the test is simply whether application of the clause is unfair or unreasonable”. (Ibid.) The plaintiff bears the burden of demonstrating that enforcement of the clause would be unreasonable under the circumstances of the case. (Lu v. Dryclean-U.S.A. of California, Inc. (1992) 11 Cal.App.4th 1490, 1493.) Conversely, where a forum selection clause is “permissive”, that is, where “the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusively in a particular forum, then the traditional forum non conveniens analysis applies.” [Citations.]” (Animal Film, LLC, supra, 193 Cal.App.4th at p. 471.)

Defendant contends that the Court should enforce the forum selection clause in the Cruise Ticket Contract (“the Contract”) governing the parties’ dispute, which states as follows:

IMPORTANT

NOTICE TO GUESTS

THIS

DOCUMENT IS A LEGALLY BINDING CONTRACT ISSUED BY CARNIVAL CRUISE LINE TO, AND ACCEPTED BY, GUEST SUBJECT TO THE IMPORTANT TERMS AND CONDITIONS APPEARING

BELOW.

THE

ATTENTION OF GUEST IS ESPECIALLY DIRECTED TO SECTIONS 1, 4, AND 12 THROUGH 15, WHICH CONTAIN IMPORTANT LIMITATIONS ON THE RIGHTS OF GUESTS TO ASSERT CLAIMS AGAINST CARNIVAL CRUISE LINE, THE VESSEL, THEIR AGENTS AND EMPLOYEES, AND OTHERS, INCLUDING FORUM SELECTION, CHOICE OF LAW, TIME LIMITATIONS FOR FILING SUIT, ARBITRATION, WAIVER OF JURY TRIAL FOR CERTAIN CLAIMS, AND CLASS ACTION WAIVER. . .

...It is

agreed by and between the Guest and Carnival that all disputes and matters whatsoever arising under, in connection with or incident to this Contract or the Guest's cruise, including travel to and from the Vessel, shall be litigated, if at all, before the United States District Court for the Southern District of Florida in Miami, or as to those lawsuits to which the Federal Courts of the United States lack subject matter jurisdiction, before a court located in Miami-Dade County, Florida, U.S.A. to the exclusion of the Courts of any other county, state or country. Guest hereby consents to such exclusive jurisdiction and waives any jurisdictional, venue or other objection that may be available."

(See Henry Decl. ¶ 11, Ex C, Section 14(c),
pgs. 15-16, (emphasis added).)

As a preliminary matter, the Court finds that this forum selection clause is mandatory ("mandate[s] litigation exclusively in a particular forum") rather than permissive, given the clear language that "all disputes. . .shall be litigated, if at all, before the United States District Court for the Southern District of Florida in Miami, or as to those lawsuits to which the Federal Courts of the United States lack subject matter jurisdiction, before a court located in Miami-Dade County, Florida, U.S.A.." (Ibid.)

In opposition, Plaintiff argues that the Contract cannot bind him because his travel partner Pamela Walker purchased the tickets. Pamela Walker declares that she purchased the tickets via a telephone call, but per Carnival's "Cruise Ticket Contract Acceptance Report," Pamela Walker is identified as the person who accepted on behalf of Devon Randall. (Henry Decl., ¶ B.) The relevant line lists RANDALL DEVON, booking V5Q2Q1, cabin 8310, accepted by WALKER PAMELA, electronic acceptance, date/time 08-DEC-23 17:17. (Ibid.)

Plaintiff argues that Ms. Walker was not his spouse, legal agent, attorney in-fact, or otherwise authorized to waive his rights, accept contractual limitations, or bind him to a Florida forum-selection clause.

In reply, Defendant puts forth authority showing that courts applying maritime law in identical circumstances have repeatedly held that a cruise line passenger is charged with notice of a cruise ticket contract even where a traveling companion, friend, brother, coworker, or agent procured, received, retained, or handled the ticket: *Lemoine v. Carnival Cruise Lines*, 854 F.Supp. 447, 448–449 (E.D. La. 1994); *Ciliberto v. Carnival Cruise Lines, Inc.*, 1986 WL 2560, at *2–3 (E.D. Pa. Feb. 25, 1986); *DeCarlo v. Italian Line*, 416 F.Supp. 1136, 1137 (S.D.N.Y. 1976); *Foster v. Cunard White Star*, 121 F.2d 12, 13 (2d Cir. 1941); *Marek v. Marpan Two, Inc.*, 817 F.2d 242, 247 (3d Cir. 1987).

Here, based on the Court's review of Defendant's authorities, Plaintiff can be bound to the Contract under these circumstances where his travel companion received and held his ticket, and he accepted the passage ticket. "Therefore, if Mrs. Lemoine accepted the passage ticket, she had notice of its contents. It is well established that a passenger has accepted a ticket and received notice of its contents even though a travelling companion receives and holds the passenger's ticket." (*Lemoine*, supra, 854 F.Supp. at 448.)

Next,

Defendant argues that the forum selection clause contained in Carnival's Cruise Ticket Contract was reasonably communicated to Plaintiff, based on the following: Prior to sailing, Carnival informed Plaintiff's travel companion that the voyage would be governed by the terms and conditions of the Guest Ticket Contract and required Plaintiff's travel companion to confirm his acceptance of those terms before he could purchase his tickets, and once again during the online check-in process prior to sailing. (Henry Dec. ¶ 5-6, Ex. A) Plaintiff's travel companion electronically confirmed acceptance of the Cruise Ticket Contract before boarding the vessel. (Henry Dec. ¶ 6, Ex. B) The Cruise Ticket Contract itself prominently displays an IMPORTANT NOTICE at the very top of the first page in bold, capitalized lettering advising passengers that the document is a legally binding contract and directing their attention to provisions that contain important limitations affecting their legal rights. (Henry Dec. ¶ 6, Ex. C, pg. 1.)

In opposition, Plaintiff makes no argument to carry his burden to show that application of the Contract is unfair or unreasonable. Plaintiff submits only a self-serving declaration stating that he did not have an opportunity to review the terms. The Court finds that adequate warning language would have put Plaintiff and his travel companion on notice of the forum selection clause.

Thus, Defendant's Motion to Dismiss for Forum Non Conveniens is GRANTED. This Action is thereby DISMISSED.

CONCLUSION

Defendant's Motion to Dismiss for Forum Non Conveniens is GRANTED. This Action is thereby DISMISSED.